

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 5078 of 2021

Applicant :- Lakhan Singh

Opposite Party :- B.K.Singh, Adhishasi Abhiyanta

Counsel for Applicant :- Devashish Tripathi, Brij Gopal

Hon'ble Prakash Padia, J.

Heard the learned counsel for the applicant.

It is alleged that the writ court order has been violated.

From a perusal of the record, prima facie, a case for contempt is made out.

Issue notice to opposite party returnable within a month.

The counter affidavit may be filed within the aforesaid period or else charges may be framed after summoning the noticee.

However, one more opportunity is granted to the opposite party to comply with the order within a month.

The noticee need not appear at this stage.

The office may send a copy of this order along with the notice.

List on the date mentioned in the notice.

Order Date :- 10.11.2021

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Counsel for Applicant :- Devashish Tripathi, Brij Gopal

Hon'ble Rohit Ranjan Agarwal, J.

Sri Mata Prasad, learned counsel appearing for opposite parties states that his compliance affidavit is ready and he will be serving the same upon learned counsel for the applicant within two weeks.

Put up this matter in the additional cause list on **18.02.2022**.

When the matter is listed next, name of Sri Mata Prasad shall be shown as counsel for the opposite parties.

Order Date :- 10.1.2022

SK Goswami

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 5078 of 2021

Applicant :- Lakhan Singh

Opposite Party :- B.K.Singh, Adhishasi Abhiyanta

Counsel for Applicant :- Devashish Tripathi, Brij Gopal

Counsel for Opposite Party :- Mata Prasad, Baleshwar Chaturvedi

Hon'ble Rohit Ranjan Agarwal, J.

In Re: Civil Misc. Listing Application No. 1 of 2022

List with previous papers at an early date.

The application stands disposed of.

Order Date :- 23.2.2022

V.S.Singh

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 5078 of 2021

Applicant :- Lakhan Singh

Opposite Party :- B.K.Singh, Adhishasi Abhiyanta

Counsel for Applicant :- Devashish Tripathi, Brij Gopal

Counsel for Opposite Party :- Mata Prasad, Baleshwar Chaturvedi

Hon'ble Rohit Ranjan Agarwal, J.

In Re: Civil Misc. Listing Application No. 2 of 2022

List with previous papers in the last week of November, 2022.

The application stands disposed of.

Order Date :- 8.9.2022

V.S.Singh

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 5078 of 2021

Applicant :- Lakhan Singh

Opposite Party :- B.K.Singh, Adhishasi Abhiyanta

Counsel for Applicant :- Devashish Tripathi, Brij Gopal

Counsel for Opposite Party :- Mata Prasad, Baleshwar Chaturvedi

Hon'ble Rohit Ranjan Agarwal, J.

Heard learned counsel for the applicant and Sri Baleshwar Chaturvedi, learned counsel for the opposite party.

The writ Court on 18.11.2019 had required the opposite party to consider the application of the applicant for granting power connection on the condition that he fulfills the requisite requirement under U.P. Electricity Supply Code, 2005. The opposite party on 20.11.2021 complying the order of writ Court had taken a final decision and rejected the application of the applicant for granting him electricity connection.

This Court finds that the order of writ Court has been complied with and the disputed question of fact cannot be dealt with under contempt jurisdiction and the proper remedy left to the applicant is to only assail the order passed by the opposite party on 20.11.2021 before the appropriate forum, if so advised.

Contempt application is dismissed, accordingly.

Contempt notice stands discharged.

Order Date :- 30.11.2022

Shekhar